States for the use thereof, except where he transports forest products purchased from the United States through the Bureau, a fee to be determined by the authorized officer who shall base his determination upon the amortization of the replacement costs for a road of the type involved, together with a reasonable interest allowance on such costs, plus costs of maintenance if furnished by the United States and any extraordinary costs peculiar to the construction or acquisition of the particular road. In arriving at the amortization item, the authorized officer shall take into account the probable period of time, past and present, during which such road may be in existence and the volume of timber which has been moved and the volume of timber, currently merchantable, which probably will be moved from all sources over such road. The authorized officer may fix the rate at which payments shall be made by the permittee during his use of the road: *Provided, however,* That this paragraph shall not apply where payment for such road use to another permittee is required under §§ 115.154 to 115.179: *Provided further,* That where the United States is entitled to charge a fee for the use of a road, the authorized officer may waive such fee if the permittee grants to the United States and its licenses the right to use, without charge, permittee's roads of approximately equal value as determined under the methods provided in this paragraph and paragraph (b) of § 115.166, as may be applicable.

3. Section 115.174 (a) is amended by adding at the end thereof two new subparagraphs (10) and (11) as follows:

§ 115.174 *Terms and conditions of permit.* (a) • • •

(10) Upon request of an authorized officer, to submit to the Bureau within 30 days with permission to publish, the detailed terms and conditions, including the fee which the permittee will ask as a condition of such licensee's use for the removal of forest products over any road or right-of-way which the United States and its licensees have acquired a right to use under § 115.162.

(11) To grant to the United States, upon request of an authorized officer, in lieu of the rights-of-way across legal subdivisions granted pursuant to § 115.162, such permanent easements on specifically described locations as may be necessary to permit the Bureau to construct roads on such legal subdivisions with appropriated funds: *Provided,* That at the time of the grant of such permanent easements the Bureau shall release, except for necessary connecting spur roads, the rights-of-way across such legal subdivisions previously granted: *Provided further,* That if the United States builds a road on such permanent easements it shall pay for any timber of the permittee which is cut, removed, or destroyed in accordance with § 115.167. The authorized officer shall waive the requirement under this paragraph, however, if the permittee makes a satisfactory showing to the authorized officer that he does not own a sufficient interest in the land to grant a permanent easement, and that he has negotiated therefor in good faith without success.

(Sec. 5, 50 Stat. 875; 43 U. S. C. 1181e)

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

APRIL 30, 1956.

[F. R. Doc. 56-3502; Filed, May 3, 1956; 8:47 a. m.]

Appendix—Public Land Orders

[Public Land Order 1297]

[1796532]

ALASKA

REVOKING EXECUTIVE ORDER NO. 8789 OF JUNE 14, 1941, WHICH RESERVED CERTAIN LANDS IN ALASKA FOR USE OF WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8789 of June 14, 1941, reserving certain lands in Alaska for use of the War Department for military purposes, which was partially revoked by Executive Order No. 9153–A of April 30, 1942, and Public Land Orders No. 917 of October 6, 1953, and No. 1245 of November 3, 1955, is hereby revoked in its entirety. The following lands are released from withdrawal by this order:

KODIAK ISLAND

LONG ISLAND

All of Long Island and the small islands and rocks adjacent thereto. United States Coast and Geodetic Survey Chart No. 8570, March 1910, shows Long Island situated between 57°44'30" and 57°47'30" N. latitudes and between 152°13' and 152°19' W. longitudes.

The area described, including both public and non-public lands, aggregates 1,320 acres.

KALSIN BAY AREA

Beginning at a point west of Isthmus Island on line of mean high tide on west shore of Kalsin Bay, 57°38'25" N. latitude, 152° 25'48" W. longitude, as shown on United States Coast and Geodetic Survey Chart No. 8570, March 1910.

Thence from said initial point,

West, 4 miles, across Kodiak Island, to a point;
North, 1¼ miles, more or less, to a point on the south boundary of the naval reserve described in Executive Order No. 8278, October 28, 1939;
East, along south boundary of the naval reserve to line of mean high tide on Middle Bay;
Thence along line of mean high tide with meanders of Middle Bay, Chiniak Bay and Kalsin Bay to the place of beginning.

The area described, including both public and non-public lands, aggregates 3,450 acres.

The lands released from withdrawal by this order shall not be subject to application, location, settlement, entry, or other forms of appropriation under the public-land laws until further order of an authorized officer of the Bureau of Land Management.

[SEAL] WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 30, 1956.

[F. R. Doc. 56-3501; Filed, May 3, 1956; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 52]

FROZEN CONCENTRATED GRAPEFRUIT JUICE

UNITED STATES STANDARDS FOR GRADES [1]

Notice is hereby given that the United States Department of Agriculture is considering the revision of United States Standards for Grades of Frozen Concentrated Grapefruit Juice (18 F. R. 7993) pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., as amended; 7 U. S. C. 1621 et seq.). This revision, if made effective, will be the second issue by the Department of grade standards for this product.

All persons who desire to submit written data, views or arguments for consideration in connection with the proposed standards should file the same with the Chief, Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, U. S. Department of Agriculture, Washington 25, D. C., not later than November 1, 1956.

PRODUCT DESCRIPTION, STYLES, AND GRADES

Sec.
52.1221 Product description.
52.1222 Styles of frozen concentrated grapefruit juice.
52.1223 Grades of frozen concentrated grapefruit juice.

FILL OF CONTAINER

52.1224 Recommended fill of container.

FACTORS OF QUALITY

52.1225 Ascertaining the grade.
52.1226 Ascertaining the rating for the factors which are scored.
52.1227 Color.
52.1228 Defects.
52.1229 Flavor.

[1] Compliance with these standards does not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.